

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, April 3, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in DADS No. 2022-27207 against PO Thomas Gerlich, Tax Registry No. 963536. The case was conferenced on February 13, 2025, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of a New York City Police Department Imposed Training for DADS No. 2022-27207, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for disposition purposes.

Andre D. Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

APPROVED

SEP 18 2025
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031849BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, GERLICH	FIRST THOMAS	M.I.	COMMAND 044
SHIELD NO. 8140	TAX REGISTRY NO. 963536	SOCIAL SECURITY NO.		DATE APPOINTED 04/12/2017
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Thomas Gerlich, on or about May 12, 2021, at approximately 0115, while assigned to 044 PCT and on duty, in the vicinity of Exit 9 on the Major Deegan Expressway, Bronx County, abused his authority as a member of the New York City Police Department, in that he searched the trunk of the vehicle § 87(2)(b) was driving without sufficient legal authority.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Police Officer Thomas Gerlich, on or about May 12, 2021, at approximately 0115, while assigned to 044 PCT and on duty, in the vicinity of Exit 9 on the Major Deegan Expressway, Bronx County, abused his authority as a member of the New York City Police Department, in that he searched the contents of § 87(2)(b) bag without sufficient legal authority.	DISMISSED	
3. Police Officer Thomas Gerlich, on or about May 12, 2021, at approximately 0115, while assigned to 044 PCT and on duty, in the vicinity of Exit 9 on the Major Deegan Expressway, Bronx County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a recording device without sufficient legal authority.	DISMISSED	
 FIRST DEPUTY COMMISSIONER		07/09/25 DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER9/18/25
DATE

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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
4. Police Officer Thomas Gerlich, on or about May 12, 2021, at approximately 0115, while assigned to 044 PCT and on duty, in the vicinity of Exit 9 on the Major Deegan Expressway, Bronx County, abused his authority as a member of the New York City Police Department, in that he seized § 87(2)(b) car keys without sufficient legal authority.	DISMISSED	



FIRST DEPUTY COMMISSIONER

07/09/25

DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

9/18/25

DATE